

A

MEASURE

PASSED BY

The National Assembly of the Church of England

To establish a Constitution and Statutes for the Cathedral Church of Saint Saviour, Southwark, and for purposes connected therewith.

[1st July 1937.]

1. The Cathedral Church of Saint Saviour, Southwark, shall henceforth be known as the Cathedral and Collegiate Church of Saint Saviour and Saint Mary Overie, Southwark, and is referred to in this Measure as "the Cathedral Church."

Title of
Southwark
Cathedral.

2.—(1) The scheme containing the constitution and the statutes for the Cathedral Church set out in the First Schedule to this Measure shall, subject to the provisions as to appeals contained in the Second Schedule to this Measure, be confirmed.

Constitu-
tion and
statutes of
Southwark
Cathedral.

(2) Such constitution and statutes shall be subject to amendment in like manner as if the scheme had been confirmed by Order in Council under the Cathedrals Measure, 1931.

21 & 22
Geo. 5. No. 7.

(3) Nothing in such constitution or statutes shall be deemed to affect the rights, privileges and duties of the Corporation of Wardens and of the Rectory Trustees therein mentioned, which pertain to them under law or under any statute or instrument lawfully made.

3.—(1) Subject to the provisions of this section and with no other authority than this Measure :—

Transfer
of trust
funds or
properties.

(i) the Trustees of the Southwark Cathedral Trust shall transfer to the Chapter of the Cathedral

Church the several funds mentioned in the Third Schedule, and any balances of cash which, on the day when this Measure comes into operation, stand to the account of the said Trustees;

- (ii) the Trustees of the Ellis Bequest constituted by the will dated the twenty-third day of July, one thousand nine hundred and twenty-five, and proved the tenth day of May, one thousand nine hundred and twenty-eight, of the late Miss Alice Prowde Ellis shall be empowered to transfer to the Chapter of the Cathedral Church all funds or properties under their jurisdiction the income of which is applicable to any purpose in connection with the Cathedral Church or for the benefit of any corporation sole or aggregate or of any person or body in the Cathedral Church.

(2) Upon the transfer of any of the funds or properties referred to in this section the funds and properties so transferred and the income arising therefrom shall be administered for the purposes of the Cathedral Church by the bodies in that behalf empowered by the statutes; Provided that the income shall be applied only for such purposes and in such manner as is authorised by the instrument governing the trust.

(3) Upon the transfer of the funds mentioned in the Third Schedule to this Measure, the Trustees shall take all steps required by law for the winding-up and dissolution of the Southwark Cathedral Trust, and any debts or liabilities incurred by the Trustees in respect of the management of the funds and still remaining undischarged at the date of transfer (including the lawful costs of the winding-up and dissolution of the Trust) shall be discharged out of the funds so transferred or the income accruing therefrom in such manner as the Cathedral Council shall decide.

4.—(1) Subject to the further provisions of this section and with no conveyance or act in the law other than this Measure, the Chapter House shall be transferred to and vested in the Chapter of the Cathedral Church.

Transfer
of the
Chapter
House.

For the purposes of this Measure "the Chapter House" means the Church of St. Thomas in Southwark together with—

- (i) the adjoining land which with that church was conveyed to the Ecclesiastical Commissioners in pursuance of section seven of the Saint Thomas Southwark and Saint Saviour Southwark Act, 1898, by virtue of the deed of conveyance described in Part I of the Fourth Schedule hereto; 61 & 62 Vict.
c. cxvi.
- (ii) the land adjoining the said church and held by the Ecclesiastical Commissioners for the purposes of the Chapter House which was conveyed to the Ecclesiastical Commissioners by virtue of the deed of conveyance described in Part II of the said Schedule.

(2) The Chapter House shall not be subject to any of the provisions contained in the Saint Thomas Southwark and Saint Saviour Southwark Act, 1898; nor shall any of the provisions contained in the Disused Burial Grounds Act, 1884, in so far as they impose any condition or restriction upon the erection of any building in or upon a closed or disused burial ground, apply to the Chapter House. 47 & 48 Vict.
c. 72.

5.—(1) Subject to the provisions of this Measure, there shall be exercisable in respect of the Chapter House all or any of the powers exercisable under section two of the Cathedrals (Houses of Residence) Measure, 1936, in respect of a house of residence to which that Measure applies; Provided that in respect of the Chapter House— Powers
exercisable
in respect
of the
Chapter
House.
26 Geo. 5. &
1 Edw. 8.
No. 4.

- (i) the power of appropriation shall be exercisable by the Administrative Chapter with the consent of the Bishop;
- (ii) the powers other than the power of appropriation shall be exercisable by the Cathedral Council with the consents of—
 - (a) the Bishop;
 - (b) the Ecclesiastical Commissioners;but so that such consents shall not be required to the creation of a tenancy which does not exceed a tenancy from year to year; and so that,

in any case where the exercise of any power would affect the plan or elevation of the Chapter House, the Ecclesiastical Commissioners shall consult the Ancient Monuments Board for England constituted under the Ancient Monuments Acts, 1913 and 1931, and, before giving their consent, shall take into consideration any recommendations made by the Ancient Monuments Board and shall impose such restrictive or other conditions as they may think fit.

(2) Subsection (2) of section four of the Cathedrals (Houses of Residence) Measure, 1936, which relates to the testification of the consent of the Ecclesiastical Commissioners and to evidence of other consents required by that Measure, shall apply to the exercise under this Measure of a power of sale or a power of granting leases and tenancies.

(3) The Cathedral Council shall have power to defray from the cathedral revenues the whole or any part of the costs, charges and expenses of and incidental to the exercise or proposed exercise of any of the powers conferred by this section.

Removal of
human
remains and
ecclesiasti-
cal fittings.

6.—(1) Notice of the finding of any human remains which may be found in the Chapter House either in consequence of the exercise of any power conferred by section five of this Measure or otherwise shall be given to the Secretary of State, and such remains shall be removed and reinterred or otherwise dealt with subject to and in conformity with such directions and restrictions as he may think fit to give or impose.

(2) Before the exercise of any power conferred upon the Cathedral Council by section five of this Measure all ecclesiastical fittings and furniture in the Chapter House shall be dealt with as the Cathedral Council with the consent of the Bishop shall direct.

Payment of
capital
moneys, &c.,
and applica-
tion thereof.

7.—(1) All capital moneys arising from any disposition of the Chapter House made under this Measure shall be paid to the Chapter of the Cathedral Church.

(2) The income arising from the investment of such capital moneys and any other income arising from any disposition of the Chapter House made under this

Measure shall be paid into and shall form part of the cathedral revenues.

(3) The receipt of the person duly authorised for the purpose by the Administrative Chapter shall be a sufficient discharge to the person making any payment referred to in this section.

8. This Measure, other than the provisions contained in the Second Schedule thereto, shall not come into operation until the time for appealing allowed by that Schedule has expired, nor, if within that time an appeal is brought, until the appeal has been disposed of or withdrawn, and if an appeal is allowed this Measure shall thereupon cease to have effect. Commence-
ment.

9. This Measure may be cited as the Southwark Cathedral Measure, 1937. Short title.

SCHEDULES.

THE FIRST SCHEDULE (referred to in section 2).

THE CATHEDRAL AND COLLEGIATE CHURCH OF SAINT SAVIOUR AND SAINT MARY OVERIE, SOUTHWARK.

PREAMBLE.

The Church of Saint Saviour, Southwark, originally the Collegiate Church of the Priory of Saint Mary Overie, thereafter served as the church of a parish established, by a Statute of Henry VIII in the year 1541, out of two previously existing parishes. The property of the Wardens of those two parishes was vested in a body of six Wardens, who were to be elected by the parishioners of the new parish.

The rectory, church, burying-ground and certain other property in the parish were granted by James I in 1611 to certain persons, and by those persons conveyed in 1614 to a body of Trustees on trust for the employment of two preaching Chaplains and other purposes. The Saint Saviour's, Southwark, Chaplaincy Act, 1868, reduced the number of these Chaplains to one, who was required to maintain a curate.

The St. Saviour's, Southwark (Church Rate Abolition) Act, 1883, vested the right of perpetual presentation to the office of Chaplain in the Bishop of the diocese in which the parish church was or might be situated and enacted that the holder of the said office should be styled Rector. It confirmed the Wardens in their capacity as a body corporate and in their rights, but regulated the method of electing the Wardens, including the Warden of the Great Account, and made provision for the election of a further Warden, to be called the Rector's Warden, and his inclusion in the body corporate. It added the Rector to the then existing Trustees, and made new provisions for election of the elected Trustees and it vested in the Trustees (commonly called "the Rectory Trustees"), in addition to the property of which at that time they stood possessed, the sum of seven thousand pounds paid by the Bishop of Rochester for the right of presentation to the office of Chaplain (thenceforward styled Rector) and certain other property detailed in the First

Schedule to the Act; but it provided that, with one exception, the income derived from these sources and from any other property which from time to time might be vested in the said Trustees should be paid over to the Wardens and by them expended upon the stipends of the Rector, the Schoolmaster and the Usher of the Grammar School of Saint Saviour in Southwark, and towards defraying the expenses of the repair and maintenance of the Church and other expenses in connection therewith as the Wardens should think proper.

These arrangements were, in part, materially changed by the Borough of Southwark (St. Saviour) Scheme, 1901, made in pursuance of the London Government Act, 1899. This Scheme provided (*inter alia*) for two Churchwardens, one of whom was to be the Rector's Warden, to whom was transferred any power, duty, property or liability of the Court of Wardens connected with the affairs of the Church; and it made the Rectory Trustees not merely trustees but also the administrators (but subject to the conditions contained in the Act of 1883 in respect of the objects to which it was applicable) of the income of the property vested in them. In other respects the rights of the Court of Wardens were fully maintained. The election of the five members of the Court of Wardens (other than the Rector's Warden) was thenceforward to be entrusted to the Council of the Metropolitan Borough of Southwark, and that of the Rectory Trustees to the inhabitants of the ecclesiastical district for the time being attached to the Church of Saint Saviour.

Meanwhile changes had taken place within the Church itself. In 1896 the Vestry resolved that the Lady Chapel (being now that portion of the Cathedral Church which is mentioned in Statute I as being available for parochial purposes) sufficiently provided for the needs of the parish and approved a proposal to apply for a faculty for fitting up that Chapel as a parish church and to use the remainder of the Church as a collegiate church, subject to the Warden of the Great Account and the Rector's Warden being members of the Chapter. In pursuance of this resolution, the Bishop of Rochester, in 1897, entered into an agreement under seal with the Rector whereby the Lady Chapel was thenceforth to be deemed the parish church and the Rector renounced all his rights to the use of the remainder of the Church, save in respect of solemnisations of baptism and marriage, the receipt of fees therefor, the joint use of the vestry and the bells, and access to the Parish Church. In the same year a faculty was given for effecting the necessary alterations, and the Bishop promulgated Statutes for the Collegiate Church. The Saint Thomas Southwark and Saint Saviour Southwark Act, 1898, which united the two parishes, designates the Church of Saint Saviour as a Collegiate Church.

The bishopric of Southwark was founded by an Order in Council made on the 20th day of March, 1905, in pursuance of

the Bishoprics of Southwark and Birmingham Act, 1904, the Second Schedule to which declared the Church of Saint Saviour, Southwark, to be the Cathedral Church of the diocese of Southwark.

By an Order in Council made on the 29th day of April, 1915, the benefices of Saint Saviour and of Saint Peter, in Southwark, were united. The Rectory of Saint Peter's has since that time been the residence of the Incumbents; and save for baptisms, marriages and occasional special Services, Saint Peter's Church has been used as though it were the Parish Church of the united benefices; and it is with that Church that the Parochial Church Council has chiefly concerned itself.

In 1922 the Bishop of Southwark promulgated new Statutes in amendment of those of 1897. These bodies of Statutes, though not binding in law, have generally been followed. In accordance with these Statutes, the Bishop was Dean and a Bishop Suffragan Sub-Dean, and the number of Canons was limited to six, with Dignities (apart from that of Sub-Dean) of Precentor, Chancellor and Missioner. The Chapter was constituted so as to include the Dean, the Sub-Dean, the Canons, the Warden of the Great Account, the Rector's Warden, the Treasurer and the Assistant Treasurer. While the clerical members of this Chapter controlled all matters relating to the ministering of the Word and Sacraments and the conduct of Divine Worship, the Chapter as a whole had, among other powers, that of appointing, dismissing, and regulating the duties of, all persons (save the Canons and others appointed by the Bishop) employed in the Cathedral Church and of fixing and altering their remuneration.

The following Constitution and Statutes have been framed by the Cathedral Commissioners for England with the object of bringing the governance of the Cathedral Church of Saint Saviour, Southwark, into accord, so far as is attainable, with the provisions of the Cathedral Measures, 1931 and 1934, while at the same time preserving so much of the ordinances under which, since its establishment as a Cathedral Church, it has been ruled as is compatible with that end. Accordingly, the Constitution provides for residentiary canonries, which have heretofore existed in the Cathedral Church and may, unless and until sufficient endowments are available, be held by persons holding some other preferment.

THE CONSTITUTION.

1.—(1) There shall be a Chapter of the Cathedral and Collegiate Church of Saint Saviour and Saint Mary Overie, Southwark (hereinafter called "the Chapter"), consisting of the Provost, the Bishops Suffragan and the Assistant Bishop or Bishops (if any), the Canons Residentiary, the Archdeacons and the Honorary Canons; and the persons holding these offices shall be and are hereby constituted a body corporate under the name of the Cathedral Chapter of the Cathedral and Collegiate Church of

Saint Saviour and Saint Mary Overie, Southwark, with perpetual succession and a common seal and with power to hold land (including rights of patronage) without any licence in mortmain, being land which, having regard to section 12 of the Cathedrals Measure, 1931, the Dean and Chapter of a Cathedral Church is entitled to continue to hold.

(2) Subject to the provisions of the Statutes of the Cathedral Church for the time being in force, the Chapter shall possess and enjoy all rights and powers commonly enjoyed by Cathedral Chapters in England and, with the endowments thereof, shall, subject as aforesaid, be subject to the same laws by which Cathedral Chapters and the endowments thereof are in England commonly governed or regulated.

(3) The matters which are declared by the Statutes to be within the jurisdiction of the Chapter shall be transacted by the Chapter, and all other matters shall be transacted by the authorities to whose jurisdiction they are assigned, or whose jurisdiction is preserved, by the Statutes.

(4) Of the matters so declared to be within the jurisdiction of the Chapter, those which by the Statutes are declared to be within the jurisdiction of the General Chapter shall be transacted by the Chapter in General Chapter assembled, and the Chapter when so assembled shall be known as "the General Chapter." When acting in respect of other matters declared to be within its jurisdiction the Chapter shall act by a body consisting of the Provost and the Canons Residentiary, which body shall be known as "the Administrative Chapter."

2. The Bishop shall be the Visitor of the Cathedral Church and shall have power to do all such things as belong as of right to the office of Visitor.

3.—(1) The Incumbent shall by virtue of his office be the Provost.

(2) The Provost, after collation and institution by the Bishop, shall be installed by the Chapter according to by-laws made by the Administrative Chapter, and at his installation shall take such oaths as are prescribed by law and by the said by-laws.

(3) The Provost shall be Chairman of the General Chapter and of the Administrative Chapter.

4.—(1) The number of Canons Residentiary shall not exceed six.

(2) The residentiary canonries shall be filled by appointments by the Bishop.

(3) No person shall be appointed to a residentiary canonry unless he has been at least six years in Priest's Orders and is not only learned but also distinguished by some title or proof of learning.

(4) Every person appointed to a residentiary canonry shall, after collation and institution by the Bishop, be installed by the Provost, in the stall assigned to him, according to by-laws made by the Administrative Chapter, and at his installation shall take such oaths as are prescribed by law and by the said by-laws.

(5) A Canon Residentiary shall, on leaving the diocese, vacate his office and his dignity in the Cathedral Church, unless the Bishop requests him in writing to continue in office.

5.—(1) There shall be not more than twenty-four Honorary Canons. They shall be appointed by the Bishop from among persons in Priest's Orders.

(2) Every person appointed to an honorary canonry shall, after collation and institution by the Bishop, be installed by the Provost, in the stall assigned to him, according to by-laws made by the Administrative Chapter.

(3) An Honorary Canon shall, on leaving the diocese, vacate his office and his place in the Cathedral Church, unless the Bishop requests him in writing to continue in office, but so that an Honorary Canon who has been appointed in connection with some office held or function performed by him shall, so long as he holds such office or performs such function, continue in his honorary canonry.

(4) If any Honorary Canon is appointed to be a Bishop Suffragan, an Assistant Bishop or an Archdeacon, he shall thereupon vacate his honorary canonry.

6.—(1) There shall be a Cathedral Council (hereinafter called "the Council"), consisting of—

- (i) the Bishop, who shall be Chairman;
- (ii) the Provost;
- (iii) the Bishops Suffragan and the Assistant Bishop or Bishops;
- (iv) the Archdeacons, other than any Archdeacon who is a Bishop Suffragan or an Assistant Bishop;
- (v) representatives of the Chapter, namely—
 - (a) the Canons Residentiary, other than any Canon Residentiary who is a Bishop Suffragan, an Assistant Bishop or an Archdeacon;
 - (b) so many Honorary Canons, elected by the Honorary Canons, as will, at the time of such election, bring the total number of representatives of the Chapter up to eight;
- (vi) two representatives of the Parochial Church Council, elected by the Parochial Church Council;

(vii) the following laymen—

- (a) the Warden of the Great Account;
- (b) the Rector's Warden;
- (c) one representative of the Rectory Trustees, elected by the Rectory Trustees;
- (d) one layman nominated by the Bishop;
- (e) one layman elected by the General Chapter;
- (f) one layman elected by the Administrative Chapter;
- (g) two laymen elected by the Diocesan Conference;
- (h) so many other laymen, being communicant members of the Church of England, co-opted from time to time by the lay members of the Council, as will, at the time of co-option, bring the total number of lay members to a number equal to the total number, exclusive of the Chairman, of clerical members;

Provided that no person shall be nominated, elected or co-opted under any of the foregoing provisions of this section who is, by virtue of his office, a member of the Council.

(2) Subject to the provisions of this section, the elected, nominated and co-opted members of the Council shall hold office for three years from the date of their election, nomination or co-option, and shall then, if qualified, be eligible for re-election, renomination or reco-option; Provided that—

- (i) any such member shall remain in office until his successor has been elected, nominated or co-opted;
- (ii) the two laymen first elected by the Diocesan Conference after the coming into operation of this Constitution shall remain in office only until the next ensuing general election of members of the Diocesan Conference, whereupon there shall be a new election of two laymen;
- (iii) any layman co-opted under category (h) in paragraph (vii) of sub-section (1) of this section shall remain in office only until the next ensuing general election of members of the Diocesan Conference.

(3) A member of the Council who—

- (i) ceases to hold the office in virtue of which he became a member of the Council;
- (ii) being a member elected under category (b) in paragraph (v) or under paragraph (vi) of sub-section (1) of this section, ceases to be a member of the Chapter or of the Parochial Church Council, and in the latter case is not forthwith re-elected to be a member of the Parochial Church Council;

- (iii) being a co-opted member under category (h) in paragraph (vii) of sub-section (1) of this section, receives a notification in writing from the Bishop that the total number of lay members of the Council is in excess of the total number of clerical members exclusive of the Chairman,

shall thereupon vacate his membership of the Council. Any casual vacancy occurring otherwise than under paragraph (iii) of this sub-section during the term of office of an elected, nominated or co-opted member shall be filled during the remainder of such term of office by a person elected, nominated or co-opted by the body or the authority which elected, nominated or co-opted the member whose office is vacant; Provided that, if at the time when such vacancy occurs amongst the representatives mentioned in paragraph (v) of sub-section (1) of this section the total number of representatives of the Chapter exceeds eight, the casual vacancy shall not be filled.

(4) The proceedings of the Council shall not be invalid only because of any vacancy therein or of any failure of any electing, nominating or co-opting body or authority to elect, nominate or co-opt one or more representatives.

THE STATUTES.

Statute I.—THE CATHEDRAL CHURCH AND THE PARISH CHURCH.

Of the Church of Saint Saviour, Southwark, which, in accordance with the Second Schedule to the Bishoprics of Southwark and Birmingham Act, 1904, became the Cathedral Church of the Diocese of Southwark, the Retro-choir now commonly known as the Lady Chapel is hereby declared to be available for parochial purposes and shall be deemed to be the Parish Church of Saint Saviour, Southwark. The expressions "Parish Church" and "Cathedral Church," wherever used in the Constitution and the Statutes (save where the context otherwise requires), shall be construed to mean respectively that part of the said Church which is declared to be parochial and the whole Church. Services held under the direction of the Bishop or the Administrative Chapter in any part of the Cathedral Church are hereinafter referred to as "Services in the Cathedral Church," and Services held under the direction of the Provost in his capacity of Incumbent in any part of the Cathedral Church are referred to as "parochial Services."

Statute II.—THE BISHOP.

1. The Bishop shall have the pre-eminent place and dignity in the Cathedral Church, and all persons holding office or

ministering therein shall pay him due reverence and render him loyal and ready service.

2. The Bishop shall have the right :—

- (i) on giving not less than four weeks' notice to the Provost (unless the Provost agrees, for any occasion, to accept a shorter notice)—

(a) to use the Cathedral Church or any part thereof for Synods, Visitations, Institutions and other episcopal functions, for Ordinations and Confirmations, for diocesan or special Services, and for the purposes of the Consistory Court;

(b) to celebrate the Holy Communion in the Cathedral Church on Christmas Day, Easter Day, Ascension Day, Whitsunday, on four other Sundays in the year in addition to the days on which Ordinations are held, and on the day appointed for the Corporate Communion of those ministering and serving in the Cathedral Church;

(c) to preach at one of the Services in the Cathedral Church on Christmas Day, Easter Day, Ascension Day and Whitsunday, to preach or appoint the preacher at the Evening Service on the days on which Ordinations are held, and, with the consent of the Provost, who shall first consult with the Canon in Residence, to preach or appoint the preacher on any other Sunday, not being Sundays (other than Ordination Sundays) in Advent or Lent;

- (ii) at any Service which he holds under paragraph (i) (a) of this section, to determine the ordering thereof, to preach or appoint the preacher and to decide the object of the collection;

- (iii) to consult the General and the Administrative Chapters upon any matter touching the welfare of the Cathedral Church or the diocese; to make, through the Provost, to either Chapter such representations as he may wish; to receive notices and agenda of all meetings of both Chapters at the time when such meetings are summoned and copies of the minutes of such meetings; and to be present at a meeting of either Chapter during such time as is necessary to enable him to consult with the members concerning any matter which he desires to lay before them.

3. Subject to the provisions of the Statutes, the right of the Bishop as Ordinary in the Parish Church shall be that which he possesses in any other parish church.

4. No person other than a Clerk in Holy Orders of the Church of England or of a Church in communion therewith shall, except with the consent of the Bishop, as well as that of the Administrative Chapter, be allowed to preach in the Cathedral Church.

5. The Bishop shall have the right to confer upon a Provost, a Canon Residentiary or an Honorary Canon vacating his office, the title, as the case may be, of Provost Emeritus or of Canon Emeritus.

6. The Bishop, as Visitor, may hold a Visitation at any time when he thinks fit and shall hold a Visitation whenever requested so to do by the Provost or the Administrative Chapter.

7. At a Visitation all members of the Chapter and the Council, the lay officers and all persons employed in the service of the Cathedral Church shall appear before the Bishop, shall answer his enquiries, and may, if they desire, prefer complaints, which he shall note and consider. And when the Bishop has delivered such admonition as he thinks expedient, all but the Provost and the members of the Chapter and of the Council shall withdraw and the Visitation shall go forward.

8. If any dispute arises regarding the interpretation of the Constitution or the Statutes or the making of any by-law, the matter shall be referred to the Visitor, whose decision thereon shall be final.

Statute III.—THE GENERAL CHAPTER.

1. The jurisdiction of the General Chapter shall extend to the matters mentioned in this Statute, and to no others, that is to say:—

- (i) the election in manner hereinafter appearing of a Bishop in the event of a vacancy in the See of Southwark;
- (ii) the election, if such an election falls to be made, of a Proctor to represent the Chapter in Convocation;
- (iii) the election of Assessors under the Clergy Discipline Act, 1892;
- (iv) the election of the Commissioner mentioned in paragraph 2 of Part I of the First Schedule to the Benefices (Ecclesiastical Duties) Measure, 1926;
- (v) the election of the member or members of the Council mentioned in category (v) (b) in sub-section (1) of section 6 of the Constitution;

- (vi) the giving of advice to the Bishop on any matter affecting the Cathedral Church or the diocese on which he seeks its advice;
- (vii) the right of being consulted by the Provost or the Administrative Chapter on any matter affecting the Cathedral Church which the Provost or the Administrative Chapter considers of sufficient importance to render such consultation desirable;
- (viii) the making of standing orders for the regulation of procedure at meetings of the General Chapter;
- (ix) any other matters to which the jurisdiction of the General Chapter is expressly extended by the Constitution or the Statutes.

2. In the event of a vacancy in the See of Southwark the General Chapter shall be summoned by the Provost to meet, and, on receiving from His Majesty a licence under the Great Seal with a letter missive as provided by the Statute of the twenty-fifth year of the Reign of Henry the Eighth, shall proceed to the election of a Bishop in the manner laid down by the said Statute.

3. For the purposes of the Clergy Discipline Act, 1892, the members of the Cathedral Church shall be all the members of the General Chapter.

4.—(1) The statutory annual meeting of the General Chapter shall be held on the day appointed by the Bishop for the Corporate Communion referred to in Statute XVI.

(2) Special meetings of the General Chapter may be summoned by the Provost at any time and shall be summoned by him on the requisition of at least twelve members of the General Chapter.

5.—(1) The quorum for the transaction of business at a meeting of the General Chapter shall be fifteen of its members.

(2) Decisions shall be made by a majority of those present and voting.

(3) In the event of an equality of votes the Provost shall have a second or a casting vote.

(4) In the absence of the Provost the Vice-Provost shall preside over the General Chapter, but shall not have a second or a casting vote.

(5) In other respects the arrangements and procedure at meetings of the General Chapter shall be governed by standing orders, not being inconsistent with the Constitution or the Statutes.

Statute IV.—THE ADMINISTRATIVE CHAPTER.

1. The jurisdiction of the Administrative Chapter shall extend—

- (i) to all matters assigned to it by the Constitution and the Statutes;
- (ii) in particular and without prejudice to the generality of this section, to the matters mentioned in this Statute;
- (iii) subject to the rights and responsibilities of the Provost, the Corporation of Wardens and the Rectory Trustees, to all matters relating to the Cathedral Church not otherwise assigned by the Constitution or the Statutes.

2. The Administrative Chapter shall have the regulation and superintendence of the Services in the Cathedral Church, other than Services held by the Bishop and parochial Services. It shall in each year make provision that on every day on which Matins or Evensong is sung in the Cathedral Church either the Provost or the Canon in Residence or an Honorary Canon shall be present at each of such services.

3. Any presentations or nominations to benefices in the patronage of the Chapter shall be made by the Chapter in its corporate capacity acting by the Administrative Chapter.

4.—(1) Save as provided by sub-section (4) of this section, the jurisdiction of the Consistory Court of the Diocese over the Cathedral Church, the churchyard thereof and the Chapter House in respect of the granting of faculties is hereby abolished.

(2) All such powers heretofore exercised by the Consistory Court of the diocese in respect of the fabric, fittings, ornaments, furniture and monuments of the Cathedral Church, and alterations of and additions to the same, and matters connected therewith, and in respect of the churchyard, as are commonly exercisable by the Cathedral Chapter in Cathedral Churches which are not parish churches shall be exercised by the Administrative Chapter, subject to the approval of the Bishop and the Provost, to the rights and responsibilities of the Corporation of Wardens and the Rectory Trustees and to the further provisions of this section; and all such powers in respect of the fabric, fittings, ornaments, furniture and monuments of the Chapter House shall be exercised by the Cathedral Council with the consent of the Bishop.

(3) Any application for the erection of any memorial in the Cathedral Church or the churchyard thereof or for any alteration or addition to the fabric, fittings, ornaments, furniture or monuments thereof shall be made by or through the Provost, who shall bring it before the Administrative Chapter. The Administrative Chapter, shall if it approves, direct the Provost to submit it with

its observations and his own views to the Bishop and, if the proposal is such as to involve expenditure of any of the Cathedral revenues, to the Council also. The Bishop, unless he rejects the application, may take such advice on the matter as he thinks fit. If, after considering such advice, the Bishop approves the application either with or without modification and the Council has raised no objection thereto on financial grounds, the Administrative Chapter may, subject to the rights and responsibilities of the Corporation of Wardens and the Rectory Trustees, by resolution authorise that effect shall be given to the application, with such modification, if any, as may be specified, without the necessity for a faculty in that behalf.

(4) The provisions of this section shall not extend to any application made for a faculty for the erection of any memorial in the Parish Church or for any alteration in or addition to the fabric, fittings, ornaments, furniture and monuments thereof, and in the matters aforesaid the jurisdiction of the Consistory Court shall continue; Provided that no such application shall be made save with the consent of the Bishop and the Administrative Chapter.

5. It shall be lawful for the Administrative Chapter to make by-laws regulating the use of the Chapter House.

6. The Common Seal shall be in the custody of the Administrative Chapter. It shall not be affixed to any document except on a resolution of the Administrative Chapter or, in the case of a document relating to a matter within the jurisdiction of the General Chapter or the Council, on a resolution of the General Chapter or the Council requesting the Administrative Chapter to cause the Seal to be affixed to the document. A memorandum of each Seal so affixed shall be recorded in the Seal-Book.

7. The Administrative Chapter shall meet not fewer than eight times in each year.

8.—(1) The quorum for the transaction of business at a meeting of the Administrative Chapter shall be four of its members.

(2) Subject to paragraph (x) of section 1 of Statute V, decisions shall be by a majority of those present and voting.

(3) In the event of an equality of votes, the Provost shall have a second or a casting vote.

(4) In the absence of the Provost the Vice-Provost shall preside, but shall not have a second or a casting vote.

(5) In other respects the arrangements and procedure at meetings of the Administrative Chapter shall be governed by standing orders, made by the Administrative Chapter, not being inconsistent with the Constitution or the Statutes.

Statute V.—THE PROVOST.

I. Subject to the Statutes and to the established rights and responsibilities of the Corporation of Wardens and the Rectory Trustees, the Provost in the Cathedral Church shall :—

- (i) have the place of dignity and precedence next after the Bishop and such as are ordinarily accorded to a Dean in a Cathedral Church ;
- (ii) have the chief authority in the Cathedral Church and receive from the Canons Residentiary and the Honorary Canons a promise of due respect for his authority, and from the other Ministers and the officers and servants of the Cathedral Church a promise of due obedience in accordance with such form as may be prescribed in by-laws made by the Administrative Chapter ;
- (iii) exercise general superintendence over the Ministers, officers and servants of the Cathedral Church ;
- (iv) be responsible, subject to the rights and responsibilities of the Council, for the proper use of the fabric of the Cathedral Church and the fittings, ornaments, furniture and monuments thereof ;
- (v) be responsible for the due performance of the Services and for the good order of the Cathedral Church ;
- (vi) have the right, subject to the rights of the Bishop, to preach or appoint the preacher at one of the Services in the Cathedral Church on Christmas Day, Easter Day, Ascension Day and Whitsunday ;
- (vii) have the right, subject to the rights of the Bishop, to celebrate the Holy Communion at one of the Services in the Cathedral Church on Christmas Day, Easter Day, Ascension Day and Whitsunday, and on such other Sundays as may be designated by by-laws made by the Administrative Chapter ; and the duty, save as is otherwise provided in the Statutes, of celebrating or appointing the celebrant at any celebration of the Holy Communion in the Cathedral Church ;
- (viii) be responsible, during such periods of the year as are not included in the period of residence of any of the Canons Residentiary, for the due performance of the duties prescribed in section 1 of Statute VI for a Canon in Residence ;
- (ix) be responsible for providing that Matins be daily said in the Cathedral Church throughout the year ;

- (x) determine, in consultation with the Administrative Chapter, the ordering of all Services in the Cathedral Church (except those which are held by the Bishop); Provided that—

(a) no change in the accustomed manner of ordering such Services shall be made save by the vote of a majority of the Administrative Chapter, of which majority the Provost must be one;

(b) in the event of any dispute arising about the ordering of such Services, the Provost or the Administrative Chapter may appeal to the Visitor whose decision shall be final;

- (xi) be responsible for the religious instruction and spiritual care of the Chanters and Choristers;
- (xii) in the event of any emergency arising, make such orders as may appear to him appropriate; Provided that any such order shall be reported by him as soon as possible to the Administrative Chapter and shall require ratification by that Chapter.

2. During the absence or incapacity of the Provost any notice or communication required to be sent to or by him shall be sent to or by the Vice-Provost.

3. Subject to the Statutes and to the established rights and responsibilities of the Corporation of Wardens and the Rectory Trustees, the Provost in the Parish Church shall have the usual rights of an Incumbent; Provided that it shall be his duty to take care that Services held in the Parish Church do not interfere with those held in the Cathedral Church, and that, in the event of any dispute arising in regard to the holding of such Services, the matter may be referred by the Provost or by the Administrative Chapter to the Visitor, whose decision shall be final.

4. Subject to the proviso in the last preceding section, the Provost, as Incumbent of the Parish, or any Minister officiating on his behalf or as his curate, shall have the following rights :—

- (i) To perform and solemnise in any part of the Cathedral Church the Services or offices of baptism, marriage and burial and to give notices and publish banns of marriage. All Services or offices so performed and solemnised, all notices so given and all banns of marriage so published shall be deemed to have been performed, solemnised, given or published in the Parish Church. Baptisms, marriages and burials so solemnised and performed shall be registered in the register of the Parish Church. All fees, dues and emoluments payable in respect of any such Services and offices, notices and publication of banns of marriage shall belong and be paid to the respective

persons who would have been entitled thereto if the Services and offices had been performed or solemnised or the notices had been given or the banns of marriage had been published in the Parish Church.

- (ii) In accordance with by-laws made by the Administrative Chapter and approved by the Visitor, to hold other Services in the Cathedral Church.

Statute VI.—THE CANONS RESIDENTIARY.

1.—(1) Each Canon Residentiary shall keep residence for such period, being not less than one month, in each year, as may from time to time be determined by the Administrative Chapter, and shall be known during such period as "the Canon in Residence."

(2) On all Sundays during his period of residence the Canon in Residence shall, subject to the rights of the Bishop, the Provost, the Bishops Suffragan, the Assistant Bishop or Bishops and the Archdeacons, preach or appoint the preacher at all Services in the Cathedral Church at which it is appointed by by-laws made by the Administrative Chapter that there shall be a sermon, and shall celebrate or appoint the celebrant at one celebration of the Holy Communion. He shall also be present at Evensong on not less than twelve week-days in each month of his residence, not being week-days when, in accordance with section 2 of Statute VIII, an Honorary Canon is required to be present.

(3) The Canon in Residence shall, during his period of residence, in the absence of the Provost, be responsible for the due performance and ordering of the Services in the Cathedral Church, and, in accordance with by-laws made by the Administrative Chapter, shall have power to give orders and instructions to the officiating clergy and to the officers and servants of the Cathedral Church in respect of such Services.

2. It shall be the duty of the Canons Residentiary to attend all Services declared by the Bishop to be, as far as they are concerned, diocesan or special Services, unless excused by him, to afford to the Bishop, at his call, advice and counsel in the Chapter upon matters pertaining to the Cathedral Church and to the diocese, and generally to endeavour to strengthen the whole corporate life and work of the Cathedral Church, and to labour together in the brotherhood of the Chapter to extend its influence and to support its activities as the Mother Church of the diocese. They shall foster by all means in their power the spirit of fellowship in the Chapter and in the Council, and loyally support the Provost in promoting the usefulness of the Cathedral Church to the diocese.

3.—(1) The Bishop shall assign a Dignity to each Canon Residentiary. The Dignities shall be those of Vice-Provost, Precentor, Chancellor, Missioner, Treasurer and Librarian.

(2) The Vice-Provost shall have precedence before the other Canons Residentiary and shall, during the absence of the Provost, subject to the rights and powers of the Canon in Residence, exercise and perform the rights and duties assigned in the Constitution and the Statutes to the Provost in the Cathedral Church; Provided that he shall not have a second or a casting vote at any meeting of the General Chapter or the Administrative Chapter, nor have the right assigned to the Provost in proviso (a) to paragraph (x) of section 1 of Statute V in respect of a change in the accustomed ordering of the Services, nor have any of the rights and duties which the Provost exercises and performs in his capacity as Incumbent.

(3) The Precentor shall, either himself or through the Succentor, perform the duties assigned to him in Statute XI and, subject to the general control of the Administrative Chapter, shall have a care for the music performed in the Cathedral Church.

(4) The Chancellor shall perform such duties in connection with education in the diocese as the Bishop may assign to him.

(5) The Missioner shall perform such duties pertaining to the office of a Missioner in the diocese as the Bishop may assign to him.

(6) Subject to the provisions of Statute XIX, the Treasurer shall, either himself or through the Sacrist, be responsible for the ornaments, vessels, frontals, vestments and hangings in the Cathedral Church and for their good repair. He shall see what repairs are required in the furniture, and report the same, or, so far as authorised by by-laws made by the Administrative Chapter, have the repairs executed. He shall also be responsible for an inventory of the treasures, vessels, ornaments, furniture and chattels of and in the Cathedral Church (other than those referred to in Statute XIX), which inventory shall be made under the orders of the Administrative Chapter.

(7) The Librarian shall be responsible for the safe custody and care of the minutes of meetings of the General and Administrative Chapters, of the archives of the Cathedral Church and of all books belonging to the Chapter except music-books.

4. Each Canon Residentiary shall also undertake such duties in the diocese as the Bishop may assign to him.

**Statute VII.—THE BISHOPS SUFFRAGAN, THE ASSISTANT
BISHOPS AND THE ARCHDEACONS.**

1. Each Bishop Suffragan, Assistant Bishop and Archdeacon, if he is not a Canon Residentiary, shall have the right

of celebrating the Holy Communion in the Cathedral Church, by arrangement with the Provost, once on each of two Sundays in every year, and shall also, by like arrangement, have the right of preaching once on each of two Sundays in every year; Provided that any person who is both a Bishop Suffragan or an Assistant Bishop and an Archdeacon shall not exercise this right in the capacity of holding more than one of the said offices.

2. The Bishop shall assign, with the approval of the Administrative Chapter, to each Bishop Suffragan and to each Assistant Bishop a seat in the Cathedral Church, to be occupied by him in virtue of his episcopal office. Any such person, so soon as may be after his admission to office, shall be placed in the said seat by the Bishop or by his Commissary appointed for this purpose, according to by-laws made by the Administrative Chapter.

3. The Administrative Chapter shall assign to each Archdeacon, not being a Bishop Suffragan or an Assistant Bishop, a stall in the Cathedral Church. Any such person, so soon as may be after his institution by the Bishop, shall be installed therein by the Provost according to by-laws made by the Administrative Chapter.

4. If a Bishop Suffragan, an Assistant Bishop or an Archdeacon is appointed to be a Canon Residentiary, he shall thereupon be installed as a Canon Residentiary, and shall, when acting as a Canon Residentiary, occupy such stall, proper to a Canon Residentiary, as may be assigned to him.

Statute VIII.—THE HONORARY CANONS.

1. It shall be the duty of the Honorary Canons to co-operate in every undertaking of the Chapter and the Council, to extend the work and influence of the Cathedral Church, to support its activities throughout the diocese, and in the Chapter to afford to the Bishop, at his call, counsel and advice upon matters pertaining both to the Cathedral Church and to the diocese. They shall attend the meetings of the General Chapter and such diocesan Services as the Bishop may require them to attend.

2. Each Honorary Canon shall be present in his stall at Evensong in the Cathedral Church on nine week-days in each year, in accordance with arrangements provided in by-laws made by the Administrative Chapter, and in the absence of the Provost and the Canon in Residence shall perform the duties prescribed in sub-section (3) of section 1 of Statute VI for a Canon in Residence.

Statute IX.—THE COUNCIL.

1. Subject to the Constitution and the Statutes and to the rights and responsibilities of the Provost, the Corporation of

Wardens and the Rectory Trustees, the jurisdiction of the Council shall extend to the matters mentioned in this Statute and to no others, that is to say :—

- (i) the maintenance and care of the fabric of the Cathedral Church and its precincts together with the Chapter House, and of the fittings, ornaments, furniture and monuments thereof, and the insurance, lighting, heating and cleaning of the same;
- (ii) the administration of the property of the Chapter and, in manner hereinafter appearing, of the Cathedral revenues;
- (iii) the concurrence or objection on financial grounds as mentioned in sub-section (3) of section 4 of Statute IV, in sub-sections (1) and (2) of section 2 of Statute XI, in section 4 of Statute XIII, and in section 1 of Statute XV;
- (iv) to the extent set forth in the Statutes, the appointment of officers and servants of the Cathedral Church, the determination of their terms of service and the direction of their duties;
- (v) the determination, to the extent mentioned in the Statutes, of the terms in respect of tenure, remuneration and duties upon which officers and servants of the Cathedral Church are to be appointed;
- (vi) the exercise and performance of the rights and duties conferred and imposed upon a Consenting Body by the Cathedral Measures, 1931 and 1934;
- (vii) the making of by-laws in accordance with Statute XXI;
- (viii) the making of standing orders for the regulation of procedure at meetings of the Council;
- (ix) any other matters to which the jurisdiction of the Council is expressly extended by the Constitution or the Statutes.

2. The Council shall give effect to any application authorised in accordance with sub-section (3) of section 4 of Statute IV.

3. The Council shall appoint a Finance Committee with powers to meet the current expenses of the Cathedral Church. It shall consist of not more than eight nor fewer than six members, among whom shall be the Provost and, if he is a member of the Council, the Comptroller.

4. No appeal for funds for any purpose connected with the Cathedral Church shall be made without the approval of the Council.

5.—(1) The Council shall hold two Stated Meetings in each year.

(2) Special meetings of the Council shall also be summoned, by the Bishop or the Provost as the case may be, upon not less than a fortnight's notice to all the members thereof—

(i) whenever the Bishop or, during a vacancy in the See of Southwark, the Provost desires a special meeting;

(ii) within three weeks of the receipt by the Bishop or, during a vacancy in the See of Southwark, by the Provost of a resolution in writing from the Administrative Chapter or of a written request from not fewer than ten members of the Council that a special meeting be summoned.

6.—(1) The quorum for the transaction of business at a meeting of the Council shall be twelve of its members.

(2) Decisions shall be by a majority of those present and voting.

(3) In the event of an equality of votes the Bishop, or the Provost if presiding in the absence of the Bishop, shall have a second or a casting vote.

(4) In the absence of the Bishop the Provost shall preside over the Council; and in the absence of both the Bishop and the Provost, the Council shall elect one of its members to preside; but the person so elected shall not have a second or a casting vote.

(5) In other respects the arrangements and procedure at meetings of the Council shall be governed by standing orders, not being inconsistent with the Constitution and the Statutes.

Statute X.—THE PRIEST VICARS.

1. There shall be not more than four nor fewer than two Priest Vicars, appointed under written agreements from among persons in Holy Orders. The appointments shall be made by the Administrative Chapter on the nomination of the Provost after consultation with the Precentor. Each Priest Vicar shall, within such time after his appointment as may be prescribed in by-laws made by the Administrative Chapter, obtain, if he does not already hold, the Bishop's Licence.

2. The remuneration to be paid to each Priest Vicar shall be determined by the Administrative Chapter with the concurrence of the Council.

3. Each Priest Vicar shall make a promise of due obedience to the Provost and to the Canons Residentiary, in accordance with by-laws made by the Administrative Chapter.

4. The duties of the Priest Vicars shall be to assist the Provost and the Canons Residentiary in the Services of the Cathedral Church and generally to perform such duties as may

be assigned to them by the Administrative Chapter. On every day on which Matins or Evensong is sung in the Cathedral Church, one Priest Vicar shall be present to sing each Office, except when other provision has been approved by the Administrative Chapter.

5. One of the Priest Vicars shall hold the office of Succentor, and another the office of Sacrist, or, if the Administrative Chapter so determines, both these offices may be held by the same Priest Vicar.

6. The Succentor shall not, save with the approval of the Administrative Chapter, hold any preferment other than his offices of Priest Vicar and Succentor.

7. It shall be the duty of the Succentor, in the absence of the Precentor or if the Precentor so directs, to be responsible, in co-operation with the Organist, for the discipline of the members of the Choir and to arrange the selection of the music for the Services in the Cathedral Church; and, when acting for the Precentor, the Succentor shall have all the powers of the Precentor under the Statutes. The Succentor shall also be responsible for the preparation of the lists of Services to be published from time to time, as the Administrative Chapter may prescribe. The Succentor shall have precedence over the other Priest Vicars.

8. It shall be the duty of the Sacrist, under the direction of the Provost, to prepare and have in readiness for use the vessels, vestments, and ornaments required for the due performance of the Services in the Cathedral Church and to assist the Treasurer in the performance of his duties. The Sacrist shall have precedence after the Succentor.

9. Nothing in this Statute shall prevent a Priest Vicar being appointed, if the Administrative Chapter consents, and acting as a curate, assisting the Incumbent in the performance of his parochial duties.

Statute XI.—THE MUSIC IN THE CATHEDRAL CHURCH.

1.—(1) There shall be an Organist.

(2) The Organist shall be appointed by the Council on the nomination of the Provost acting in consultation with the Precentor upon such terms in respect of tenure, remuneration and duties as the Council may determine; Provided that his annual salary shall be not less than £400 gross.

(3) Subject to the general control of the Administrative Chapter, the Organist shall perform his duties under the direction, not being inconsistent with the terms on which he is appointed, of the Precentor. In the event of any dispute regarding the selection of the music to be performed, the discipline of the members

of the Choir or other matters with which the Precentor and the Organist are concerned, the matter may be referred by the Precentor or by the Organist to the Administrative Chapter, whose decision shall be final.

2.—(1) There shall be so many Lay Clerks, Chanters and Choristers as the Administrative Chapter, save in so far as any objection is raised by the Council on financial grounds, may determine.

(2) The Lay Clerks, Chanters and Choristers shall be appointed by the Administrative Chapter on the nomination of the Provost after consultation with the Precentor and the Organist and with the financial concurrence of the Council, upon such terms in respect of tenure, remuneration and duties as the Administrative Chapter may determine; Provided that the Provost may, after similar consultation, appoint persons to serve as probationary Lay Clerks, Chanters and Choristers in the Choir of the Cathedral Church; but such persons shall not continue to serve in the Choir unless their appointment is confirmed at the next ensuing meeting of the Administrative Chapter.

(3) The Lay Clerks, Chanters and Choristers shall perform their duties under the direction of the Precentor and the Organist in accordance with by-laws framed from time to time by the Administrative Chapter, not being inconsistent with the terms on which they are appointed.

3. The Organist, Lay Clerks, Chanters and Choristers shall, upon appointment, be admitted to their offices in accordance with by-laws made by the Administrative Chapter and shall make a promise of due obedience to the Provost and the Canons Residentiary, in accordance with the said by-laws.

Statute XII.—THE CHAPTER CLERK.

1. There shall be a Chapter Clerk.

2. The Chapter Clerk shall be appointed by the Council on such terms in respect of tenure, remuneration and duties as the Council may determine. His duties shall include attendance, when required, at all meetings of the General Chapter, the Administrative Chapter and the Council.

3. The Chapter Clerk shall perform his duties under the direction, not being inconsistent with the terms upon which he is appointed, of the Administrative Chapter.

Statute XIII.—THE SURVEYOR OF THE FABRIC.

1. There shall be a Surveyor of the Fabric.

2. The Surveyor of the Fabric, being a duly qualified Architect, shall be appointed by the Council on such terms in respect of

tenure, remuneration and duties as the Council may determine. His duties shall include the periodical making of a report to the Council upon the structural condition of the fabric of the Cathedral Church.

3. The Surveyor of the Fabric shall perform his duties under the direction, not being inconsistent with the terms upon which he is appointed, of the Council.

4. Nothing herein contained shall be construed as preventing the Council, or the Administrative Chapter with the financial concurrence of the Council, from employing one or more persons, other than the Surveyor of the Fabric, in any work connected with the fabric of the Cathedral Church, its fittings, ornaments, furniture or monuments.

Statute XIV.—THE COMPTROLLER.

1. There shall be a Comptroller.

2. The Comptroller shall be appointed by the Council on such terms in respect of tenure and duties as the Council may determine, and may be one of the members of the Council. If he is not such a member, he may receive such remuneration as the Council may determine.

3. The Comptroller shall advise the Council regarding the administration of the property of the Chapter, shall carry out its orders in respect of the same, shall keep the accounts of the Cathedral revenues and shall, under the orders of the Council and subject to the Statutes, disburse the same.

Statute XV.—THE VERGERS AND OTHER SERVANTS OF THE CATHEDRAL CHURCH.

1. There shall be so many Vergers, Ringers, Sextons and other servants, appointed by the Administrative Chapter on such terms in respect of tenure, remuneration and duties, as that Chapter, with the financial concurrence of the Council, may determine.

2. The Vergers, Ringers and Sextons and any other servants in the Cathedral Church shall perform their duties under the direction, not being inconsistent with any terms upon which they are appointed, of the Administrative Chapter.

Statute XVI.—THE CORPORATE COMMUNION.

There shall in every year be a Corporate Celebration of the Holy Communion upon the Feast of the Presentation of Christ in the Temple, commonly called the Purification of Saint Mary

the Virgin, or upon such other day as the Bishop after consultation with the Provost may appoint. At the said Celebration the Bishop, or, in his absence, the Provost, shall be the Celebrant. All members of the Chapter and of the Council, and all Ministers, officers and servants of the Cathedral Church shall attend the said Celebration, unless expressly exempted by the Bishop or prevented by sickness or other sufficient reason.

Statute XVII.—THE ORDER OF PRECEDENCE AND MANNER OF ATTENDANCE IN THE CATHEDRAL CHURCH.

1.—(1) The Order of precedence in the Cathedral Church shall be as follows :—

- (i) the Bishop, or any Bishop Suffragan or Assistant Bishop when representing the Bishop, with those in attendance upon him;
- (ii) the Provost;
- (iii) any Bishop, Suffragan and any Assistant Bishop, whether he is a Canon Residentiary or not, when not representing the Bishop nor in attendance upon him;
- (iv) the Vice-Provost;
- (v) the other Canons Residentiary in order of seniority by appointment;
- (vi) the Archdeacons, if not Canons Residentiary nor in attendance upon the Bishop or his representative;
- (vii) the Honorary Canons in order of seniority by appointment;
- (viii) the Priest Vicars in the order prescribed in the Statutes or by by-laws made by the Administrative Chapter;
- (ix) the Warden of the Great Account;
- (x) the Rector's Warden;
- (xi) the other lay members of the Council in the order prescribed by by-laws made by the Council;
- (xii) the Organist, the Chapter Clerk, the Surveyor of the Fabric and the Comptroller in order of seniority by appointment;
- (xiii) the members of the Choir.

The like order shall be observed in meetings of the General and the Administrative Chapters and of the Council among those who are members thereof.

(2) The Administrative Chapter shall assign stalls in the Choir of the Cathedral Church to the Warden of the Great Account and to the Rector's Warden.

2. Each of the persons referred to in the last preceding section, when occupying the stall or seat in the Cathedral Church allotted to him in virtue of his office, shall be duly vested or habited.

3. The precedence to be observed by any person, other than persons referred to in section 1 of this Statute, who, upon the invitation of the Bishop, of the Provost or of a Canon Residentiary takes part in any Service in the Cathedral Church, shall be such as may be prescribed by by-laws made by the Administrative Chapter.

Statute XVIII.—THE PAROCHIAL CHURCH COUNCIL.

1. The Parochial Church Council may make to the Bishop, as Chairman of the Council, either through the Provost or through its representatives upon the Council, representations with regard to any matter touching the welfare of the Cathedral Church, in so far as it affects the Parish and those who are entered upon the Electoral Roll of the Parish.

2. Subject to the Constitution and the Statutes, the Parochial Church Council shall in other respects have, in relation to the Parish Church, the powers, duties and liabilities ordinarily conferred and imposed upon Parochial Church Councils.

Statute XIX.—THE CHURCHWARDENS.

The Churchwardens of the Parish shall, subject to the provisions of the Parochial Church Councils (Powers) Measure, 1921, continue to hold the furniture and ornaments specified in a list to be certified by the Bishop as a list of the property of the said Churchwardens. They shall also, subject to the Constitution and the Statutes, have, in relation to the Parish Church, the powers, duties and liabilities ordinarily conferred and imposed upon Churchwardens.

Statute XX.—THE CATHEDRAL REVENUES.

1.—(1) The Cathedral revenues shall comprise all moneys accruing to the Chapter from any source whatsoever, exclusive of any stipend attaching to the incumbency, the offerings customarily retained by the Incumbent, the alms given at any parochial celebrations of the Holy Communion, the collections made at and the fees payable in respect of parochial Services and any Service or office performed and solemnised in any part of the Cathedral Church in pursuance of paragraph (i) of section 4 of Statute V.

(2) It shall be lawful for the Rectory Trustees from time to time, if they think fit, to pay into the Cathedral revenues in

discharge of all or any of the liabilities imposed upon them by sub-section (5) of section 1 of the Borough of Southwark (Saint Saviour) Scheme, 1901, all or any of the income arising from property vested in the said Trustees.

2. Subject to the Constitution and the Statutes and to the rights of the Incumbent, the Corporation of Wardens and the Rectory Trustees, the Council shall administer all property belonging to the Chapter and the income accruing therefrom.

3. The Cathedral revenues shall be expended solely upon the purposes of the Cathedral Church including its fabric, fittings, ornaments, furniture and monuments, and the insurance thereof, the maintenance of Services in the Cathedral Church, and such charitable objects as the Council may determine; Provided that, in the event of the Rectory Trustees paying into the Cathedral revenues all or any of the income arising from property vested in the said Trustees, such income shall be applied to the purposes mentioned in sub-section (2) of section 7 of the Saint Saviour's Southwark (Church Rate Abolition) Act, 1883, except in so far as the payments to the Schoolmaster and the Usher of St. Saviour's Grammar School are or may be affected by any Scheme lawfully made.

4. All moneys received from collections taken at any of the Services held in the Cathedral Church (other than collections taken at any diocesan or special Service held by the Bishop, at any parochial Service or at any episcopal function) shall be allocated and distributed to such purposes as the Council, after consultation with the Administrative Chapter, may from time to time determine. The collections taken at those Services at which, in accordance with paragraph (ii) of section 2 of Statute II, the object of the collection is determined by the Bishop, shall be distributed by the Council in accordance with the decisions of the Bishop.

5. Subject as aforesaid, the Cathedral revenues may be expended upon—

- (i) defraying the expenses connected with the meetings of the General Chapter, the Administrative Chapter, the Council, and any committees thereof;
- (ii) charitable purposes, as determined by the Council after consultation with the Administrative Chapter;
- (iii) making such provision as may be practicable for pensions for officers and servants of the Cathedral Church and, subject to any conditions laid down in any Measure or Statute, and to the condition that any Provost or Canon Residentiary who receives from Cathedral revenues any pension or superannuation allowance, or contribution thereto, shall vacate his office (including,

in the case of the Provost, his incumbency) upon attaining the age of seventy-five years, providing pensions or superannuation allowances, or contributions thereto, for the Provost and the Canons Residentiary.

6. In accordance with section 22 of the Cathedrals Measure, 1931, audited accounts of all property, revenues and funds to which that section refers shall be annually prepared by the Comptroller and transmitted to the Ecclesiastical Commissioners, and shall be annually published by the Administrative Chapter.

Statute XXI.—BY-LAWS.

The Administrative Chapter and the Council may, subject to the Statutes, make by-laws regulating any matter within their jurisdiction as defined by the Statutes, not being inconsistent therewith; Provided that any dispute as to the making of a by-law or as to the body competent to make it shall be determined by the Visitor.

PROVISIONS APPLICABLE TO THE CONSTITUTION AND THE STATUTES.

1. After the cesser of the powers of the Cathedral Commissioners, no repeal or amendment of, nor any addition to, the Constitution or the Statutes shall be made except in accordance with the provisions of the Cathedral Measures, 1931 and 1934.

2. In the Constitution and in the Statutes—

“Archdeacon” means Archdeacon in the Diocese of Southwark;

“Assistant Bishop” means Assistant Bishop appointed by the Bishop of Southwark;

“Bishop” and “Diocese” means respectively Bishop of Southwark and Diocese of Southwark; and “diocesan” shall be construed accordingly;

“Bishop Suffragan” means Bishop Suffragan in the Diocese of Southwark;

“Corporation of Wardens” means Corporation of the Wardens of Saint Saviour, Southwark;

“Incumbent” means Incumbent of the Parish Church of Saint Saviour and Saint Peter, Southwark;

“Parish” means, except where the context otherwise requires, ecclesiastical parish of Saint Saviour and Saint Peter, Southwark; and “parochial” shall be construed accordingly;

“Rectory Trustees” means Trustees of the Rectory of Saint Saviour, Southwark.

3. Wherever in the Constitution and the Statutes mention is made of the holder of any office, dignity or preferment whatsoever, there shall be understood thereby the holder of such office, dignity or preferment for the time being.

4. Nothing in the Constitution or the Statutes shall be deemed to affect the rights, privileges and duties of the Corporation of Wardens and of the Rectory Trustees therein mentioned, which pertain to them under law or under any Statute or Instrument lawfully made.

5. Nothing in the Constitution or the Statutes shall affect any right of patronage or other right or interest of His Majesty.

THE SECOND SCHEDULE

(referred to in section 2).

RIGHT OF APPEAL.

For the purpose of conferring the like right of appeal against the scheme as is conferred by section six of the Cathedrals Measure, 1931, the following provisions shall have effect :—

- (1) Within one month after the passing of this Measure notice of the prospective confirmation of the scheme shall be published in the *London Gazette* and communicated to such persons and bodies as are in the opinion of the Cathedral Commissioners for England affected by the scheme;
 - (2) During a period of three months after the publication of the said notice in the *London Gazette* a person or body whose interests appear to the Privy Council to be affected by the scheme may appeal to His Majesty in Council against the scheme or any part thereof;
 - (3) If any appeal is so made, His Majesty in Council may order and direct that the appeal shall be heard by a Committee of the Privy Council, and such Committee shall make a report to His Majesty in Council thereon, and may propose to His Majesty in Council either to allow the appeal or to dismiss the appeal;
 - (4) Any rules of procedure and practice made by the Privy Council under section six of the Cathedrals Measure, 1931, shall apply to appeals under this Schedule.
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THE THIRD SCHEDULE
(referred to in section 3).

STOCKS FORMING THE SOUTHWARK CATHEDRAL
TRUST.

£	s.	d.		ENDOWMENT FUND.
5,124	6	6	-	3½% War Stock, 1952.
822	2	2	-	3½% Conversion Loan.
2,400	0	0	-	4% Funding Loan.
6,345	14	11	-	3½% India Stock.
1,374	17	6	-	3% India Stock.
525	6	1	-	4% Canada Stock, 1940/60.
6,986	10	10	-	3% London County Stock.
1,053	7	6	-	4% Union of South Africa, 1943/63.
237	1	7	-	4% New South Wales, 1942/62.
1,100	0	0	-	4% Western Australia Stock.
566	10	4	-	3% Metropolitan Water Board Stock.
461	0	0	-	4% London Midland and Scottish Railway Preference Stock.
449	0	4	-	4% London Midland and Scottish Railway Debentures.
243	0	0	-	3% Burma Railway Company Debentures.
125	0	0	-	4% Australia 1943/48 Registered Stock.

CATHEDRAL FABRIC AND REPAIRS
FUND.

4,994	4	6	-	5% Corporation of London Stock, 1945/65.
328	12	9	-	3½% Conversion Stock.

LADY CHAPEL FABRIC AND REPAIRS
FUND.

1,841	9	1	-	5% Corporation of London Stock, 1945/65.
349	7	8	-	Commonwealth of Australia 3½% Re- gistered Stock, 1954/59.

CHOIR ENDOWMENT FUND.

4,798	6	6	-	3% London County Stock.
295	10	10	-	3½% War Stock, 1952.

RESERVE FUND.

1,400	0	0	-	4½% South Indian Railway Debentures.
180	0	0	-	4% Australia 1943/48 Registered Stock.
211	10	0	-	3% London County Stock.
98	4	1	-	3½% Conversion Loan.

£	s.	d.		CLARKE CHANTERS' FUND.
1,886	7	10	-	3½% Conversion Loan.

CANON PRECENTOR'S STALL ENDOWMENT
FUND.

1,200	0	0	-	4% Western Australian Stock.
1,806	0	0	-	4% Madras and Southern Mahratta Railway Debentures.
654	16	8	-	4% Union of South Africa, 1943/63.
753	1	2	-	3½% War Stock, 1952.
520	0	0	-	4% Great Indian Peninsula Railway Deben- tures.
455	1	6	-	3½% Conversion Loan.
200	0	0	-	4% Australia 1943/48 Registered Stock.
418	9	5	-	3% London County Stock.

ORGAN RENOVATION FUND.

750	0	0	-	4% Great Indian Peninsula Railway Debentures.
297	18	7	-	3½% War Stock, 1952.
288	16	7	-	3½% Conversion Loan.
30	0	0	-	4% Australia 1943/48 Registered Stock.
196	10	0	-	3% London County Stock.

SOUTH METROPOLITAN GAS COMPANY
MEMORIAL WINDOW FUND.

324	13	9	-	3½% Conversion Loan.
45	0	0	-	4% Australia 1943/48 Registered Stock.
19	0	2	-	3% London County Stock.

GUDGE LEGACY.

40	0	0	-	8% Anglo-Iranian Oil Co. Preference Shares.
20	0	0	-	4% Australia 1943/48 Registered Stock.
32	19	6	-	3% London County Stock.
4	8	0	-	3½% Conversion Loan.

CATHEDRAL LIBRARY.

125	15	5	-	3½% Conversion Loan.
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THE FOURTH SCHEDULE
(referred to in section 4).

PART I.

A deed of conveyance dated the second day of March, 1900, and made between the Mayor and Commonalty and Citizens of the City of London, Governors of the possessions, revenues and goods of the Hospitals of Edward King of England the Sixth, of Christ Bridewell and Saint Thomas the Apostle as Governors of Saint Thomas's Hospital of the one part, and the Ecclesiastical Commissioners for England of the other part.

PART II.

A deed of conveyance dated the twenty-seventh day of June, 1901, and made between the Most Honourable Charles Stewart, Marquess of Londonderry, K.G., His Majesty's Postmaster-General, on behalf of His Majesty, of the first part, the Right Reverend Edward Stuart, Lord Bishop of Rochester, of the second part, and the Ecclesiastical Commissioners for England of the third part.

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FOR

NORMAN GIBB SCORGIE, C.V.O., C.B.E., Controller of His Majesty's Stationery Office
and King's Printer of Acts of Parliament